WIPO TRAINING OF TRAINERS PROGRAM ON EFFECTIVE INTELLECTUAL PROPERTY ASSET MANAGEMENT BY SMALL AND MEDIUM-SIZED ENTERPRISES (SMEs) IN DAMASCUS, SYRIA

Organized by
the World Intellectual Property Organization (WIPO)
and
the SME Division, Ministry of Economy

Damascus, January 16 to 20, 2011

PROVISIONAL PROGRAM
prepared by the international bureau of WIPO

Sunday, 16 January 19, 2011

9.30 – 9.45	Opening Ceremony
9.45 – 10.45	The Role of Intellectual Property Assets in Strengthening the Competitiveness of Small and Medium-sized Enterprises (SMEs) and the IP for Business Services Provided by the World Intellectual Property Organization (WIPO) Speaker: Mr. Guriqbal Singh Jaiya, Director, Small and Medium-sized Enterprises Division, WIPO, Geneva, Switzerland Resources: Module One of IP PANORAMA
10.45 – 11.00	Tea/Coffee Break
11.00 – 12.15	"Making a Mark" – The Importance of Trademarks in Establishing a Distinct Identity in the Market Place Speaker: Ms. Najmia Rahimi, Senior Program Officer, SMEs Division, WIPO Resources: Module Two of IP PANORAMA Making a Mark
12.15 – 14.15	Lunch Break
14.15 – 15.30	"Looking Good" – The Appeal of Designs in Getting Noticed by the Customer Speaker: Ms. Sunita Sreedharan,CEO, SKS Law Associates, New Delhi, India Resources: Module Two of IP PANORAMA Looking Good
15.30 – 15.45	Tea/Coffee Break

15.45 – 17.00	"Inventing the Future" – The Importance of Inventive and Innovative Activity in Maintaining Competitiveness
	Speaker: Ms. Kristina Janusauskaite, Attorney at Law Vilnius
	Resources: Module Three of IP PANORAMA Inventing the Future

Monday, January 17, 2011

9.30 – 10.45	"In Confidence" – Putting in Place a Trade Secret Protection Program "
	Speaker: Najmia Rahimi
	Resources: Module Four of IP PANORAMA "In Confidence"
10.45 – 11.00	Tea/Coffee Break
11.00 – 12.15	Creative Expression" - Benefiting from your Copyright and Using the Copyright Works of Others
	Speaker: Kristina Janusauskaite
	Resources: Module Five of IP PANORAMA Creative Expression
12.15 – 14.15	Lunch Break
14.15 – 15.30	Adding Value with Geographical Indications, Certification Marks and Collective Marks
	Speaker: Sunita Sreedharan
15.30 – 15.45	Tea/Coffee Break

15.45 – 17.00	IP Law and Administration in the Syrian Arab Republic
	Speaker: Local (From i)

Tuesday, January 18, 2011

9.30 – 10.45	Intellectual Property in the Digital Economy
	Speaker: Kristina Janusauskaite
	Resources: Module Eight of IP PANORAMA
10.45 – 11.00	Tea/Coffee Break
11.00 – 12.15	International Trade and Intellectual Property
	Speaker: Najmia Rahimi
	Resources: Module Nine of IP PANORAMA
12.15 – 14.15	Lunch Break
14.15 – 15.30	Shaping Business Strategy Through Competitive Intelligence – Using Intellectual Property Information
	Speaker: Sunita Sreedharan
	Resources: Module Six of IP PANORAMA http://osint.pbworks.com/f/Fahey_2007.pdf
15.30 – 15.45	Tea/Coffee Break
15.45 – 17.00	Exploiting Intellectual Property Assets; Licensing, Franchising and Merchandising
	Speaker: Guriqbal Singh Jaiya
	Resources: Modules Seven and Twelve of IP PANORAMA

Wednesday, January 19, 2011

9.30 – 10.45	Valuation of IP Assets and IP-based Financing
	Speaker: Sunita Sreedharani
	Resources: Module Eleven of IP PANORAMA
10.45 – 11.00	Tea/Coffee Break
11.00 – 12.15	Enforcing Intellectual Property Rights
	Speaker: Local (From the Syrian Arab Republic)
12.15 – 14.15	Lunch Break
14.15 – 15.30	Role of IP Management in Effective Government-University-Industry Relations
	Speaker: Local speaker () and Jaiya
15.30 – 15.45	Tea/Coffee Break
15.45 – 17.00	Case Studies: Effective Use of Intellectual Property Assets by SMEs in the High Tech or [ ] Sector in Syria
	Speaker: Local speaker(s) (Syrian Arab Republic)

Thursday, January 20, 2011

9.30 – 10.45	IP Audit and IP Due Diligence Speaker: Kristina Janusauskaite Resources: Module Ten of IP PANORAMA
10.45 – 11.00	Tea/Coffee Break
11.00 – 12.15	Current and Proposed IP Information, Teaching/Training, Advice and Consulting Services for SMEs in Syria Speaker: Local Speakers (From Syrian Arab Republic)
12.15 – 14.15	Lunch Break
14.15 – 15.30	Creating a Tool Box of Support Services: Basic IP Services to be Provided by SME Support Institutions in the Syrian Arab Republic Speaker: Jaiya and Representative(s) of SME Support Institution in the Syrian Arab Republic
15.30 – 15.45	Tea/Coffee Break
15.45 – 17.00	Written Test (open book) for Evaluation of Participants
17.00– 17.30	Summing up and Closing Ceremony

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1. **Objective of the TOT:**

* The objective of the TOT is to create a critical mass of trainers in the country who have the basic knowledge and skills to provide preliminary IP assistance to entrepreneurs, students and micro, small and medium sized enterprises (MSMEs) on effective IP asset management to enhance the competitiveness and sustainability of the MSMEs in the domestic and the international markets.

* As the TOT seeks to impart basic IP asset management competences (which includes competence on how to identify, protect, exploit and manage IP assets) by a business which currently has no or very limited IP asset management awareness/capability, it is hoped that, at the end of the TOT program, many/most of the participants (as trained "IP Asset Managers"), would be able to function either as master trainers in subsequent TOTs in the country or would be capable of providing basic information/advice/guidance to owners/managers of MSMEs on effective IP asset management in developing sustainable IP savvy business models and IP savvy business strategies.

* The IP assets to be used effectively by an MSME may be created/owned by it, or created/owned in partnership with another entity, or rented/licensed from another entity. In other words, the 5-day training seeks to enable the participants to be able to conduct a basic IP audit that provides guidance to an MSME as to how it should go about in seeking to maximize it profits/benefits and minimize its costs/risks associated with it. The participants should also be able to advice the MSMEs on taking effective preventive/proactive steps for identifying, protecting, exploiting and managing IP assets as an integral part of their business strategies.

2. Number of Participants:

* A minimum of 25 and a maximum of 50 participants.

3. Background of Local/National Participants:

* It is critically important to have the participants/trainees with the right profile and motivation. To get the right number of duly motivated participants/trainees, it is imperative to start very early with the selection process. At least 80% of the participants/trainees should be those who are or will be directly responsible for creating awareness and/or undertake teaching/training on business aspects of IP and/or building the capacity of students, entrepreneurs, or of employees/managers/owners of MSMEs on how to use IP assets effectively in the business strategies of MSMEs for enhancing the competitiveness of otherwise well run or successful enterprises/businesses in any sector of the economy, be it in agriculture, animal husbandry, fisheries, forestry, mining, traditional or high

tech manufacturing, agribusiness, software, visual arts, franchising, retail and other service sectors, including manufacturers of home-based or traditional products, such as artisans and craft persons. Ideally, the participants/trainees should be those who are or will be providing a holistic/composite/integrated package of technical assistance/support to entrepreneurs and/or MSMEs

* These participants/trainees may come from the government, university/teaching/training institutions, private sector or even NGOs/civil society organizations, which are involved in improving the performance or competitiveness of MSMEs through awareness creation or capacity building activities of any kind. In other words, the participants/trainees chosen from the various types of institutions should be involved or should have a clear plan to be involved directly as teachers or trainers in creating IP awareness or IP capacity building activities. Thus, an employee of the IP Office, who will be directly involved in such activities, preferably on a full time basis, will qualify to be a participant/trainee in the forthcoming TOT program to become a master trainer/trainer on basics of IP asset management from a business/MSME perspective.

* All/most of the participants/trainees should be from "SME Support Institutions/Organizations/Firms" which include the outreach and training/teaching and other relevant staff of (a) IP Offices, (b) SME training institutions, (c) Chambers of Commerce, (d) Export Promotion Agencies, (e) Investment Promotion Agencies; (f) Financial Institutions (providing financial subsidies, debt or equity), (g) Science/Technology Parks (h) Technology Transfer Offices, (i) Technology/Business Incubators, (j) Faculty members in institutions teaching/training courses/ programs pertaining to Science, Engineering, Management, International Business, Quality Management, Supply Chain management, Innovation Management, New Product Development, Technology Transfer, (k) Faculty of vocational training institutions/craft centers, (l) Business Development/Support/Service Centers, including technology/IP information centers, (m) representatives of venture capitalists and business angels, (n) representatives of technology transfer and licensing networks, (o) entrepreneurship training centers, (p) women empowerment centers/institutions, (p) other representatives of for-profit "Business Advisory/Consulting/Development Services" providers in the public/private sector/civil society/NGOs, such as firms of business advisors industry advisors, graphic designers, branding consultants, etc. Further, they can also be from ministries who work with MSMEs, business consortiums and financial institutions. Owners/ managers/employees of MSMEs themselves are not of the right profile since they are not likely to train anyone else. An SME consultant, business consultant/adviser, even in the private sector would qualify, as also a teacher of IP law who wishes to understand the business aspects of IP asset management, or a teacher who teaches a course on entrepreneurship, innovation

management, new product development, export
management, marketing, international business, and a wide variety of other university students, including those in BBA, MBA, Engineering, Medicine, etc would all qualify to be trainees in the TOT for becoming trainers, who may then create IP awareness, provide information/services or do actual consulting on IP asset management on a free or for-profit basis.

* We would prefer to receive from you the full list and email addresses of all the participants as soon as possible and in any case at least a month before the start of the TOT. This will enable us to provide them guidance about the content in English and/or Arabic on the SMEs website of WIPO, which they should look at before coming to the TOT program; this will also include the 12 modules of IP PANORAMA multimedia toolkit (in English and/or Arabic) which may be gone through on line via the SMEs website but these can also be provided on CD-ROM in advance to the selected participants/trainees.

* Please note that representatives of SME support institutions that merely provide grants, subsidies or make equity investments but provide no guidance, assistance or support on IP will normally not qualify to be participants/trainees in the forthcoming TOT program.

4. Provisional Program of the TOT and Local Experts/Speakers

The Program is attached for your comments. You are requested to identify four local experts/speakers for the topics indicated in it. It is important to have local examples and case studies of MSMEs in your country that have made successful use of the IP assets in their business strategies. Ideally, amongst local speakers we would like to have one or more representatives of such enterprises or an IP attorney/consultant or a staff of your office who can make a presentation on or include such local examples and case studies in his/her presentation.

5 **Venue:**

Please note that your organization is responsible for all cost associated with providing a suitable venue, including simultaneous English-Arabic interpretation (if needed), providing audio-visual equipment for making Power Point presentations, at least two cordless microphones, internet access on the podium, stationary, pencils/pens, secretarial assistance during the TOT program, coffee/tea breaks, and lunches during the five days of the TOT program.

6. Evaluation of Speakers and participants:

Please find attached a form that may have to be translated into Arabic for obtaining

the feedback of the participants/trainees on the TOT Program and the presentations of the international and national speakers/experts, including WIPO official(s). All participants/trainees are expected to participate in an open book test on the last day; an example of such a test question paper is also attached, which may have to be adapted to the context of your country. Please let us know as soon as possible the changes that you consider necessary to the proposed test questions. In case it needs to be translated into Arabic, we would like you to do so before the start of the TOT program. If translated into Arabic, then we will provide an answer key to facilitate the evaluation of the answer sheets by you or your representative. Please note that all actions/costs associated with it will be the responsibility of your organization.

7. Completion Certificates

Please note that completion certificate will be issued only to those participants/trainees who 90% of the TOT sessions and achieve a minimum score of 50% in an open book examination that will be held on the last day of the TOT program.

8. Follow up after the TOT Program

The test will also be an input for selecting the most promising persons for further assistance to become master trainers as well as to plan the steps required to be taken after the TOT program is over; that is, what support or technical assistance should be made available to the trainers when the start using their new competences in their actual day to day work with entrepreneurs, students and/or MSME.

FINAL ASSESSMENT TEST

1. What means “intellectual property rights” and what impact these rights can have on SMEs?

   _____
   _____
   _____
   _____
   _____

2. IP rights can be owned by:

   ☐ Only natural persons
   ☐ Only legal persons
   ☐ Natural and legal persons

3. Your company invents a product comprising a new chemical formula (Tetrafluorethylene,) which when used on, or applied to kitchen utensils has the characteristics of preventing food in general and eggs in particular from sticking to the pan. Your company wants to ensure that is has sole use of the formula. What IP right/s could be relevant?

   ☐ copyright
   ☐ patent
   ☐ trademark
   ☐ trade secrets
   ☐ industrial design

4. Your company wishes to market the frying pans that are coated with Tetrafluorethylene under a commercial name that may attract its potential customers (Tetrafluorethylene is not an easy name to be remembered let alone pronounced by ordinary consumers). “ Tefal ” is the name chosen and used to identify the frying pans manufactured with the magic formula. The company wants to make sure that it has sole use of the name in relation to kitchen utensils and frying pans coated with Thetrafluorethylene. What IP right/s could be relevant?

   ☐ copyright
   ☐ patent
   ☐ trademark
   ☐ trade secrets
   ☐ industrial design

Name/Surname _____

5. Your company wishes to enhance the sale of its frying pans not only by using the Tetra formula but also by giving them a more appealing, aesthetic and new aerodynamic shape. It also wants to make sure that is has sole use of the new appearance or "look"of its frying pans. What IP right/s could be relevant?

   ☐ copyright
   ☐ patent
   ☐ trademark
   ☐ trade secrets
   ☐ industrial design
   ☐

6. Your company wishes to aggressively advertise its unique and special frying pans (coated with the magic formula, sold under the name of "Tefal" and appearing under nice contours) both on T.V, by means of short film sketches of 20 seconds, and on radio, by means of short songs. It wants to make sure that nobody will use the music or words of the song, nor the short films made for TV. What IP right/s could be relevant?

   ☐ copyright
   ☐ patent
   ☐ trademark
   ☐ trade secrets
   ☐ industrial design
   ☐

7. You want to distinguish and protect your new business related with production and selling of frozen pizzas. Your boss thinks that **FREEZY PIZZA** is a great choice as consumers would easily recognize and remember this name.
   a) What do you think of the validity of this mark from the point of view of its distinctiveness?
      _____
      _____
   b) From 1 (minimum) to 10 (maximum), what level of distinctiveness would you attribute to this mark?_____
   c) What would you do to make the mark more distinctive?
      _____
      _____
   d) Indicate some products or services for which this mark would be very distinctive?
      _____
   e) If the same mark was used for freshly made sandwiches, do you think that the mark would be valid or not? And why?
      _____
      _____

Name/Surname _____

f) Do you think that the owner of the above mark would be able to prevent registration of trademark SUSIE, FROZEN PIZZA? Why?

_____

8. A trademark can consist of:
   - ☐ A word
   - ☐ A logo
   - ☐ Combination of one or both of the above, and even numbers, images, sounds, smells, shapes, etc as long as they are distinctive.

9. What advice would you give someone who wants to protect his/her trademark:
   - ☐ To register at the Indian Business Registers Agency
   - ☐ To register at the Indian Patent and Trademark Office
   - ☐ Not to register anywhere

10. Finest Products Company and Great Goods, Inc would like to add value to their products by conducting external examination of the products and indicating their checked quality when marketing. Finest and Great are not in business together and use their own marks. What might be relevant in this situation?
    - ☐ a certification mark
    - ☐ a collective mark
    - ☐ a service mark

11. If a product has a particular quality or reputation because of the geographical region from which it originates it may be protected by:
    - ☐ Geographical Indication
    - ☐ Collective Mark
    - ☐ Both

12. In order to be registrable in India, an industrial design of a new package must be:
    - ☐ A new, original and industrially applicable object representing decorative or esthetic features of a product
    - ☐ Any new and original creation relating to external decorative features of a product.
    - ☐ Linked to technical or functional considerations to obtain a technical result

13. To obtain copyright in an original “work” in form of artwork used on a new package :
    - ☐ It should be registered at the Copyright Agency
    - ☐ It does not require to be registered

Name/Surname _____

14. Rights to this original art work (see question 13) terminates in India:
    - ☐ 60 years after the death of the author of the art work
    - ☐ 50 years after the death of the author of the art work
    - ☐ 20 years from the creation of the work

15. Your company employs Sally, and part of her employment duties is writing manuals for your business.
    a) When she leaves the job would she be entitled to reproduce or license others the developed by her manuals?

    _____

    _____

    b) Sally also works as a freelance journalist and a publicist. Sally's extra talent comes to your attention and you ask her to write media release and an article for a local newspaper to promote your business. You agree to pay her for the work. Later on you want to reproduce the article in your new booklet. Can you do it?

    _____

    _____

16. A patentable invention must be necessarily be:
    - ☐ A technical solution to a problem
    - ☐ May be any solution to any problem

17. "Commercial secret" means:
    - ☐ Any information which is kept secret
    - ☐ Any information which has actual or potential commercial value because it is kept secret
    - ☐ Any commercial or private information which is confidential

18. The Director of the R&D team of your company, Mrs. Mischen, specialized in the field of molecular physics invented a unique and new process of destroying oxygen in the atmosphere. Mrs. Mischen is an employee of the company and invented the process during the normal course of employment and the invention relates to her duties at work. Please indicate which statement is correct concerning the patent:
    - ☐ The invention does not qualify for patent protection since it is a process but not a product
    - ☐ The invention does not qualify for patent protection since it will fail the "industrial applicability" requirement for patents
    - ☐ The invention most likely qualifies for patent protection since it is new and more efficient than existing ones in the same field
    - ☐ The invention does not qualify for patent protection since the product is excluded from the scope of patentability
    - ☐ The invention qualified for patent protection, however it is recommended to keep the invention as a trade secret due to patent disclosure requirements
    - ☐ Mrs. Mischen most likely obtains the ownership on the invention

Name/Surname _____

19. Who can enforce IP rights?
    - ☐ IP owner
    - ☐ Only collective administration society
    - ☐ Any person

20. IP owner had the right:
    - ☐ Only to license
    - ☐ Only to assign
    - ☐ Both to license and to assign

21. Right granted by a patent is essentially:
    - ☐ Right to exclude others
    - ☐ Right of the owner to use it

22. If you have developed a new or improved product, before putting it on the market:
    - ☐ File a patent application at the National Patent Office
    - ☐ Display the product and demonstrate the technology at an industrial fair
    - ☐ Announce the improved or new technology in an advertisement

23. Copyright to a work in a country is enforceable:
    - ☐ Only in that country
    - ☐ If that country is a member of the Berne Convention and/or the World Trade Organization then it would be enforceable in all member countries

24. A trademark, which is not considered to be a well-known mark, and is registered with the Indian Patent and Trademark Office, is enforceable:
    - ☐ Only in that country
    - ☐ Anywhere in the world

25. An industrial design registered in India can be enforced:
    - ☐ Only in India
    - ☐ In China, Russia and Japan, but not in South Korea

26. Patent information databases such as the ones available for free consultation at WIPO, EPO and USPTO websites are:
    - ☐ Valuable source of the most recent technological information
    - ☐ Helpful only to SMEs in finding solutions to technical problems

Name/Surname _____

27. What are the main elements of a trade secrets management programme?

_____
_____
_____
_____

28. Indian Ingenuity, Ltd. (IIL), invents, develops, and distributes a new snowboard. IIL does not apply for a patent for its product. Best Copy Corporation buys an IIL snowboard, analyzes it, and produces and sells a "clone" of the product under the Best name. IIL files a suit against Best, alleging violations of intellectual property law. On what basis would Best prevail?

_____
_____
_____
_____
_____

29. Why should you do an IP Audit and what are the main elements of an IP asset Audit?

_____
_____
_____
_____
_____

30. Before exporting your product to USA, France, Japan and/or China what practical intellectual property related steps should be addressed by you in order to safeguard your business interests?

_____
_____
_____
_____
_____

31. You are planning to set up a website for your organization/business. What are the key IP issues that you would address while doing so?

_____
_____
_____
_____
_____

Name/Surname _____